

MEMORANDUM OF UNDERSTANDING

BETWEEN

INTELLIBUS

AND

THE UNIVERSITY OF THE COMMONWEALTH CARIBBEAN

This Memorandum of Understanding (hereafter “MoU”) is made this ... day of September 2026.

BETWEEN

THE UNIVERSITY OF THE COMMONWEALTH CARIBBEAN (hereafter “The UCC”), a university registered and recognised by the University Council of Jamaica and registered by the Jamaica Tertiary Education Commission, with its principal place of business at 17 Worthington Avenue, Kingston 5, Jamaica;

AND

INTELLIGENT BUSINESS PLATFORMS LLC (hereafter “Intellibus”), a global technology organisation dedicated to advancing education, digital transformation, and artificial intelligence solutions.

The UCC and Intellibus are hereinafter collectively referred to as the “Institutions” and individually as the “Institution”.

In order to promote co-operation, the Institutions agree their intentions as follows.

Article I

Purpose

The Institutions hereby agree to foster the establishment of a mutually beneficial relationship for the purpose of educational, academic and commercial collaboration in the areas of mutual interest as identified in Article II.

Article II

Areas of Cooperation and Activities

1. The areas of cooperation include without limitation:
 - a. Artificial Intelligence Education.
 - b. Academic Collaboration.
 - c. Talent Pathways and Assessments.
 - d. Smart City Development and other commercial activities as may be mutually agreed upon in writing.
2. Educational and academic cooperation activities may include without limitation:
 - a. Joint research.
 - b. Development of knowledge sharing platforms.
 - c. Joint development and delivery of academic programmes.
 - d. Seminars, workshops and conferences.
 - e. Faculty and student exchanges.
 - f. Subject-specific and professional development opportunities for undergraduate and postgraduate students.
 - g. Establishment of scholarship and internship programmes for undergraduate and postgraduate students.
 - h. Joint exploration of funding opportunities through grants and public-private partnerships.

Article III

Academic Independence and Autonomy

1. Nothing in this MoU shall be interpreted as limiting or interfering with the academic independence and autonomy of either Institution. Each Institution shall retain responsibility for its own admissions, curriculum, academic standards, examinations, accreditation, quality assurance, and academic awards.
2. Any academic activities undertaken under this MoU shall be conducted in accordance with the applicable policies, standards, governance requirements, and regulatory requirements of the Institution responsible for the activity.
3. Nothing in this MoU shall restrict either Institution from independently developing, offering, or delivering academic, training, or professional development programmes through its own academy or educational initiatives, whether independently or with other partners.
4. For the avoidance of doubt, such independent activities shall not include the use, reproduction, adaptation, commercialization or derivative development of the other Institution's intellectual property, proprietary methodologies, technology, curricula, assessments, confidential information or other protected materials without prior written consent.

Article IV

Nature of the MoU

1. This MoU outlines the intent of the collaboration between the Institutions and serves as a framework for subsequent activities. This MoU does not constitute a legally binding document, and nothing herein shall be construed as creating a legally binding commitment financial or otherwise.
2. To the extent that the Institutions wish to create legal or financial obligations with respect to any activity contemplated in this MoU, a Separate Agreement shall be concluded between the Institutions before such activity is undertaken. Any Separate Agreement shall set out the applicable terms, financial obligations, and funding arrangements for the specific activity. Each Separate Agreement shall be subject to the necessary approvals and availability of funds of the respective Institutions, unless otherwise expressly agreed in that Separate Agreement.
3. Each Institution shall be responsible for and bear all of its own costs, risks and liabilities arising out of its efforts pursuant to this MoU unless otherwise agreed in writing.
4. This MoU is not intended to and shall not be construed to create or give effect to a joint venture, association, partnership or other business organisation or agency arrangement and neither Institution shall have the authority under this MoU to bind the other without the prior written approval of the other Institution.
5. Any activity or collaboration under this MoU that requires governmental, regulatory, accreditation, or institutional approval shall be subject to obtaining the necessary approvals. Each Institution shall be responsible for obtaining approvals applicable to its own activities.
6. Each Institution shall comply with all applicable laws, regulations, accreditation requirements, and institutional policies relating to its activities under this MoU, including applicable export control, sanctions, and anti-bribery and anti-corruption laws. Each

Institution shall obtain and maintain any approvals, licences, permits, or authorisations required for its own activities.

7. Each Institution shall promptly disclose to the other any actual or potential conflict of interest that may affect its participation in any activity under this MoU. The Institutions shall work together in good faith to address any such conflict.
8. Each Institution shall comply with all applicable export control, sanctions, and licensing laws in connection with activities under this MoU. Neither Institution shall transfer, provide access to, or disclose any software, technology, technical information, or other controlled materials unless permitted by applicable law. Each Institution shall be responsible for obtaining any approvals, licences, or authorisations required for its own activities.

Article V

Non-Exclusivity

1. This MoU in no way restricts the Institutions from participating in similar activities or arrangements with other institutions or organisations.
2. Either Institution may engage its affiliates, employees, consultants, contractors and service providers in connection with activities under this MoU, provided that such parties are subject to appropriate confidentiality, data protection and intellectual property obligations. Engagement of a third party that will materially perform the other Institution's agreed responsibilities or materially alter an agreed joint activity shall require the prior written consent of the other Institution, such consent not to be unreasonably withheld, conditioned or delayed.
3. Notwithstanding anything to the contrary in this MoU, Articles VI (Non-Solicitation of Personnel), IX (Data Protection), X (Intellectual Property), XI (Confidentiality), XIII (Use of Marks), XV (Governing Law and Jurisdiction), and any provisions expressly stated to survive termination shall be legally binding and enforceable upon the Institutions.

Article VI

Non-Solicitation of Personnel

1. During the term of this MoU and for twelve (12) months following its termination, neither Institution shall, without the prior written consent of the other Institution, directly or indirectly solicit, induce, entice, recruit, hire or engage any employee or independent contractor of the other Institution who is directly involved in, assigned to, or materially supports activities undertaken pursuant to this MoU.
2. This provision shall not restrict general recruitment activities, including public job advertisements, open recruitment campaigns or other recruitment activities not specifically directed at personnel of the other Institution; provided that such activities are not used for the purpose of circumventing the restrictions set out in paragraph 1.

3. This provision shall not restrict either Institution from recruiting or engaging students, interns, graduates or participants in academic, training, talent-development, internship or career-pathway programmes conducted pursuant to this MoU or otherwise, provided that such individual is not, at the relevant time, an employee or independent contractor of the other Institution. Once such an individual becomes an employee or independent contractor of either Institution, paragraphs 1 and 2 shall apply.
4. For the avoidance of doubt, nothing in this provision shall restrict the employment or placement of students, graduates or programme participants with third-party employers as part of the intended talent-development, internship, placement or career-pathway objectives contemplated by this MoU.

Article VII

Term and

Termination

1. This MoU shall enter into force on the date on which the last signature is affixed and remain in force for an initial period of three (3) years. At the end of the initial three-year period, this MoU may be renewed for successive three-year periods or any other period by mutual agreement in writing.
2. This MoU may be terminated by either Institution providing six (6) months' notice in writing to the other Institution.
3. The termination of this MoU shall not affect the completion of those collaborative activities subject to Separate Agreements and those activities which are already in process.
4. Termination or expiry of this MoU shall not affect any provisions intended to survive, including confidentiality, intellectual property, data protection, branding, and any accrued rights or obligations of either Institution.
5. Notwithstanding the foregoing, either Institution may terminate this MoU immediately upon written notice where the other Institution commits a material breach of any binding provision of this MoU and, where such breach is capable of remedy, fails to remedy such breach within thirty (30) days after receiving written notice thereof.
6. Termination of this MoU shall not, by itself, terminate any Separate Agreement, which shall continue in accordance with its own terms unless otherwise provided therein.

Article VIII

Force

Majeure

1. Neither Institution shall be liable for any delay, failure, or inability to perform any activity under this MoU to the extent caused by circumstances beyond its reasonable control, including natural disasters, pandemics, governmental restrictions, civil unrest, war, labour disputes, or other force majeure events.

2. The affected Institution shall promptly notify the other Institution and use reasonable efforts to reduce the impact and resume the affected activity as soon as reasonably practicable.
3. If a force majeure event continues and materially prevents an activity from continuing, the Institutions shall consult in good faith on an appropriate course of action, including suspension, modification, or termination of the affected activity.

Article IX

Data Protection

1. Each Institution shall comply with the data protection and privacy laws applicable in its respective jurisdiction when processing, sharing, or transferring personal data under this MoU.
2. Any transfer of personal data between jurisdictions shall be made in accordance with applicable laws and appropriate safeguards.
3. Each Institution shall use personal data only for the purpose for which it was collected or shared and shall take reasonable steps to protect it from unauthorised access, disclosure, loss, or misuse.
4. Nothing in this MoU shall transfer ownership of data, databases, datasets or proprietary information belonging to either Institution. Each Institution shall retain ownership of data supplied by it, subject to applicable law and the rights of data subjects.
5. Where Intellibus technology or platforms are used in connection with an activity, Intellibus shall retain all rights in its platform, system architecture, software, algorithms, models, analytics, system-generated metadata and proprietary technologies. Rights concerning jointly generated programme data shall be specified in the applicable Separate Agreement.
6. Neither Institution shall use confidential information, personal data or proprietary data supplied by the other Institution to train, fine-tune or develop artificial intelligence models except with prior written consent or as expressly provided in a Separate Agreement.

Article X

Intellectual

Property

1. Each Institution shall retain all right, title and interest in and to all intellectual property, technology, software, platforms, methodologies, algorithms, artificial intelligence models, data models, curricula, course materials, assessments, frameworks, processes, documentation, know-how, trademarks and other proprietary materials owned, developed or controlled by that Institution prior to this MoU or developed independently of activities under this MoU ("Background IP"). No right, title, licence or interest in one Institution's Background IP is transferred to the other Institution except as expressly agreed in writing.

2. Without limiting the foregoing, all Intellibus platforms, software, AI technologies, methodologies, assessment systems, talent platforms, technology architecture and associated improvements, modifications, configurations and derivative works shall remain the exclusive property of Intellibus, except where otherwise expressly agreed in a Separate Agreement.
3. Intellectual property specifically and jointly created by personnel of both Institutions in carrying out an approved joint activity shall be addressed in a Separate Agreement before such development begins, including ownership, licensing, commercialization, publication and use rights. In the absence of such Separate Agreement, neither Institution shall acquire ownership of the other Institution's Background IP by reason of participating in the joint activity.

Article XI

Confidentiality

1. Each Institution shall keep confidential and protect any confidential information received from the other Institution and shall use it only for the purposes of this MoU. Neither Institution shall disclose confidential information to any third party without the prior written consent of the other Institution, except where disclosure is required by applicable law.
2. Each Institution shall return or destroy confidential information received from the other Institution upon request, except where retention is required by applicable law or regulatory requirements, or where such information is maintained as part of routine backup, archival, or disaster recovery systems. Any retained confidential information shall remain subject to the confidentiality obligations in this MoU.
3. Confidential Information does not include information that is publicly available, was already lawfully known to the receiving Institution, or is lawfully received from a third party without a duty of confidentiality.
4. Where a Separate Agreement is entered into, the Institutions may include additional confidentiality requirements, including provisions on the protection, use, and disclosure of confidential information, as appropriate to the specific activity.
5. The obligations under this Article shall survive termination or expiry of this MoU for five (5) years; provided that Confidential Information constituting a trade secret or proprietary technology shall remain protected for so long as it retains such status under applicable law.
6. Confidential Information shall not include information independently developed by the receiving Institution without reference to or use of the disclosing Institution's Confidential Information.

Article XII

Non-Circumvention

1. During the term of this MoU and for twelve (12) months following its termination, neither Institution shall knowingly circumvent the other Institution in relation to a specific commercial opportunity, employer, client, sponsor, funder, technology partner or strategic partner first introduced to it by the other Institution specifically in connection with activities under this MoU, for the purpose of excluding the introducing Institution from an opportunity that the Institutions were actively pursuing together.
2. This provision shall not apply to relationships demonstrably existing prior to the introduction, relationships independently developed without use of the other Institution's Confidential Information, general market engagement, academic relationships, student recruitment or employment and career opportunities contemplated by this MoU.
3. Nothing in this Article shall prevent either Institution from independently conducting its ordinary business or academic activities.

Article XIII

Use of Marks

1. Neither Institution shall use the name, emblem or trademarks of the other Institution, or any of their subsidiaries, and/or affiliates, or any abbreviation thereof, without the express prior written approval of the other Institution in each case.
2. Any use or display of the name or logo of one Institution by the other shall comply with the brand guidelines provided by the respective Institution. Neither Institution shall use the other Institution's name or logo without prior approval, except as otherwise agreed in writing.
3. Neither Institution shall issue any press release, public announcement, or marketing communication regarding this MoU or any collaboration under it without the prior written consent of the other Institution, except where disclosure is required by applicable law.

Article XIV

Dispute Resolution

1. If a dispute arises concerning the interpretation, implementation, or administration of this MoU, the Institutions shall first seek to resolve the matter amicably through good faith discussions.
2. If the dispute cannot be resolved, the Institutions may mutually agree to mediation or another appropriate resolution process.
3. If the matter remains unresolved, either Institution may terminate this MoU in accordance with Article VII (Term and Termination).

Article XV

Governing Law and Jurisdiction

1. This MoU shall be governed by another jurisdiction mutually agreed by the Institutions in writing, without regard to its conflict of laws principles.
2. The Institutions agree that this MoU is non-binding, except for any provisions expressly stated to be binding. The governing law clause is included only to provide clarity on the interpretation of the MoU and does not make any other provision binding.

Article XVI

Amendment

1. The MoU can be amended with the agreement of both Institutions in writing, specifying the date on which any modification, amendment or changes will become effective.

Article XVII

Entire Agreement

1. This MoU represents the entire agreement between the Institutions and supersedes all prior negotiations, representations and agreements whether written or oral.

Article XVIII

Notices and Communications

1. All communications and notices under this MoU shall be valid if sent by post or email to the Coordinators identified below, or to any person authorised in writing by the respective Institution to act on the Coordinator's behalf. Email notices shall be sent to the designated email address of the relevant Institution or as otherwise agreed in writing by the Institutions.

The UCC

Name: Dr. Winston Adams, OD, JP

Job Title: Group Executive Chairman

Address:

Intellibus

Name: Camile Gayle

Job Title: Head of Operations

Address:

17 Worthington Avenue, Kingston 5

Contact number(s): (876) 906-3000

Email: wadams@ucc.edu.jm

12020 Sunrise Valley Drive,

Suite 101, Reston, VA, 20191

Contact number(s): (876) 423-3630

Email: Jamaica@intellibus.com and
Legal@intellibus.com

Article XIX

Counterparts

This MoU may be executed in counterparts, but which taken together will constitute one, and the same original, MoU. The MoU may be executed by exchange or signed and scanned signature pages in PDF format.

IN WITNESS WHEREOF, the undersigned, being duly authorised by their respective Institutions have executed this Memorandum of Understanding.

SIGNED FOR AND ON BEHALF OF:

The University of the Commonwealth Caribbean

Name: Dr. Winston Adams, OD, JP

Title: Group Executive Chairman

Date: _____

SIGNED FOR AND ON BEHALF OF:

Intellibus

Ed Watal

Principal and Founder

Date: _____